

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 HOUSE BILL 4354

By: Moore

6 AS INTRODUCED

7 An Act relating to invasive Salt Cedars; creating the
8 Salt Cedar Eradication Act; defining terms; creating
9 certain program; directing the Oklahoma Conservation
10 Commission to oversee and implement the program along
11 with cooperation from certain state agencies;
12 authorizing the Oklahoma Conservation Commission to
13 utilize certain funds; stating purpose of program;
14 listing certain duties; authorizing the promulgation
15 of rules and procedures; requiring certain annual
16 report; creating the Salt Cedar Eradication Revolving
17 Fund; providing for content of fund; providing for
18 deposits and expenditures; providing for
19 codification; providing an effective date; and
20 declaring an emergency.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 3-8-201 of Title 27A, unless
24 there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Salt Cedar
Eradication Act".

SECTION 2. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 3-8-202 of Title 27A, unless
there is created a duplication in numbering, reads as follows:

1 A. As used in this act:

2 1. "Eligible landowners" means private, tribal, and public
3 landowners in Oklahoma counties within the Upper North Fork of the
4 Red River Basin;

5 2. "Eradication" means the removal or substantial reduction of
6 Salt Cedar populations to a level where they no longer pose a
7 significant threat; and

8 3. "Salt Cedar" means all species within the genus Tamarix
9 identified as invasive or noxious in Oklahoma.

10 B. There is hereby created a program to control and eradicate
11 invasive Salt Cedar species in Oklahoma counties within the Upper
12 North Fork of the Red River Basin and is to be administered by the
13 Oklahoma Conservation Commission in collaboration with the Oklahoma
14 Department of Agriculture, Food, and Forestry and the Oklahoma Water
15 Resources Board. To accomplish the goals listed in this section,
16 the Commission is authorized to use the funds available in the Salt
17 Cedar Eradication Revolving Fund established in Section 3 of this
18 act. The purpose of the program is to manage and eradicate invasive
19 Salt Cedar species in Oklahoma counties within the Upper North Fork
20 of the Red River Basin, to enhance water resources, restore native
21 ecosystems, and protect agricultural productivity.

22 C. The Oklahoma Conservation Commission, in collaboration with
23 the Oklahoma Department of Agriculture, Food, and Forestry and the
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Oklahoma Water Resources Board, shall establish and oversee the Salt Cedar eradication program which shall include:

1. Conducting surveys to identify and map Salt Cedar infestations in Oklahoma counties within the Upper North Fork of the Red River Basin;

2. Developing and implementing science-based eradication strategies, including mechanical removal, chemical treatments, and biological controls;

3. Providing technical and financial assistance to eligible landowners; and

4. Monitoring and evaluating the effectiveness of eradication efforts.

D. The Oklahoma Conservation Commission shall establish guidelines for participation, including cost-sharing arrangements and reimbursement opportunities.

E. The Oklahoma Conservation Commission is authorized to promulgate any rules and procedures to effectuate the provisions of this act.

F. The Oklahoma Conservation Commission shall submit an annual report to the Governor, Speaker of the Oklahoma House of Representatives, the President Pro Tempore of the Oklahoma State Senate, and the chairs of the appropriation committees of the Oklahoma House of Representatives and the Oklahoma State Senate outlining the following:

1 1. Progress of eradication efforts;

2 2. Expenditures and funding needs; and

3 3. Recommendations for continued Salt Cedar management.

4 SECTION 3. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 3-8-203 of Title 27A, unless
6 there is created a duplication in numbering, reads as follows:

7 There is hereby created in the State Treasury a revolving fund
8 for the Oklahoma Conservation Commission to be designated the "Salt
9 Cedar Eradication Revolving Fund". The fund shall be a continuing
10 fund, not subject to fiscal year limitations, and shall consist of
11 all monies received by the Oklahoma Conservation Commission from
12 appropriations, federal grants or funds, municipal contributions,
13 private contributions, and any other sources, including interest
14 earned from the income in the fund, that are designated for deposit
15 to such fund or designated for duties associated with removal and
16 eradication of Salt Cedars in Oklahoma counties within the Upper
17 North Fork of the Red River Basin. All monies accruing to the
18 credit of said fund are hereby appropriated and may be budgeted and
19 expended by the Oklahoma Conservation Commission to perform the
20 duties imposed on the Commission by law. Expenditures from said
21 fund shall be made upon warrants issued by the State Treasurer
22 against claims filed as prescribed by law with the Director of the
23 Office of Management and Enterprise Services for approval and
24 payment.

SECTION 4. This act shall become effective July 1, 2026.

SECTION 5. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

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